

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
BALFOURD AYALA,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT,
P.O. PHILIP SIU and POLICE OFFICERS
"JOHN DOES and JANE DOES 1-10", said
names being fictitious and unknown,

Defendants.
-----X

Index No:
Date Filed:
Plaintiff designates
NEW YORK
County as the place of
trial.

SUMMONS

The basis of venue is:
Location of incident
1557 Broadway New
York, NY 10036

To the above named Defendants

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
April 29, 2024

Yours, etc.,
HARRIS, KEENAN & GOLDFARB PLLC

By:



Alison R. Keenan
Attorneys for Plaintiff
233 Broadway, Suite 900
New York, New York 10279
(212) 393-1000
File No: 208931

Defendant's Address:

The City of New York
100 Church Street
New York, NY 10007

The New York City Police Department
1 Police Plaza
New York, NY 10038

PO Philip Siu
100 Church Street
New York, New York 10007

PO Philip Siu
1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No:
Date Filed:

-----X
BALFOUR AYALA,

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT,
P.O. PHILIP SIU and POLICE OFFICERS
"JOHN DOES and JANE DOES 1-10", said
names being fictitious and unknown,

Defendants.
-----X

Plaintiff, by his attorneys, HARRIS, KEENAN & GOLDFARB PLLC, as and
for Verified Complaint herein, respectfully sets forth and alleges:

AS AND FOR A FIRST CAUSE OF ACTION:

1. That this action arises under the United States Constitution, particularly under provisions of the First, Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983, 1985, 1986 and 1988, and the rights under the Constitution and laws of the State of New York.
2. Each and all of the acts of the defendants herein were done by the defendants, their servants, agents and/or employees, and each of them, were acting under the color of State Law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.
3. That at all times herein mentioned, the individually named defendant, P.O. Philip Siu (Shield # unknown), is hereby sued in his individual capacity.
4. That at all times herein mentioned, the defendants John Does and Janes Does are sued in their individual capacities.

5. That at all times herein mentioned, the defendant THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York.
6. That at all times herein mentioned, the defendant THE CITY OF NEW YORK was a corporation doing business in the State of New York.
7. That at all times herein mentioned, the defendant THE CITY OF NEW YORK operated a police department as part of and in conjunction with its municipal function.
8. That at all times herein mentioned, defendant THE CITY OF NEW YORK, hired police officers to carry out its business, with said police officers part of defendant THE NEW YORK CITY POLICE DEPARTMENT.
9. That at all times herein mentioned, defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT maintained said police department.
10. That at all times herein mentioned, defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT managed said police department.
11. That at all times herein mentioned, defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT controlled said police department.
12. That at all times herein mentioned, defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, its, servants, agents and/or employees employed police officers, detectives, and other personnel, to work as representatives of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
13. That at all times herein mentioned, it was the duty of defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, its servants, agents, police officers, detectives, employees and/or personnel to provide for and/or ensure the safety, protection, security and well-being of peaceful and law-abiding citizens.
14. That at all times herein mentioned, it was the duty of defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, to sufficiently hire,

train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that its servants, agents, police officers, detectives, employees and/or personnel provide for and/or ensure the safety, protection, security and well-being of persons who were in the presence, proximity, custody and/or control of the said police department, officers, detectives and/or personnel.

15. That at all times herein mentioned, defendants THE CITY OF NEW YORK THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of its said servants, agents, police officers, detectives and/or employees conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.
16. That at all times herein mentioned, defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that its said servants, agents, police officers, detectives and/or employees conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.
17. That at all times herein mentioned, defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed a police officer known as P.O. Philip Siu (Badge # unknown) and/or officers named herein as POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, persons intended being police officers and personnel of the New York City Police Department to work as representatives of THE NEW YORK CITY POLICE DEPARTMENT.
18. That at all times herein mentioned, defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had the duty to sufficiently hire, train

and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of said defendants police officers, P.O. Philip Siu (Badge # unknown) and/or officers named herein as POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, persons intended being police officers and personnel of the New York City Police Department conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

19. That at all times herein mentioned, defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that said defendants police officer, P.O. Philip Siu (Badge # unknown) and/or officers named herein as POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, persons intended being police officers and personnel of the New York City Police Department conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

20. That at all times herein mentioned, the defendants, P.O. Philip Siu (Badge # unknown), POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, persons intended being police officers and personnel of the New York City Police Department were servants, agents, employees and/or representatives of defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

21. That at all times herein mentioned, the defendants, P.O. Philip Siu (Badge # unknown), POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, persons intended being police officers and personnel of THE NEW YORK CITY POLICE DEPARTMENT had the duty to ensure that their actions,

activities and behavior conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

22. That at all times herein mentioned, the defendants, P.O. Philip Siu (Badge # unknown), POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, persons intended being police officers and personnel of THE NEW YORK CITY POLICE DEPARTMENT had the duty to conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.
23. That on May 9, 2024, the plaintiff BALFOURD AYALA, was present at and/or near 1557 Broadway, County, City and State of New York.
24. That on May 9, 2024, the plaintiff BALFOURD AYALA , was lawfully and peacefully present at and/or near 1557 Broadway, County, City and State of New York.
25. That on May 9, 2024, police officers, detectives and/or officers of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, were present at 1557 Broadway, County, City and State of New York.
26. That on May 9, 2024, said police officers, detective and/or officers of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, were present at and/or in the vicinity of 1557 Broadway, County, City and State of New York, in the course and scope of their employment for the defendants.
27. That on May 9, 2024, the defendants, P.O. Philip Siu (Badge # unknown), POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, were present at 1557 Broadway, County, City and State of New York.
28. That on May 9, 2024, the defendants, P.O. Philip Siu (Badge # unknown), POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, were present at and/or near 1557 Broadway, County, City and State of New York, in the course and scope of their employment as police officers and/or detectives.

29. That on May 9, 2024, the defendants, P.O. Philip Siu (Badge # unknown), POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, were present at and/or near 1557 Broadway, in the County, City and State of New York, in the course and scope of their employment as police officers and/or detectives for the defendants.
30. That on May 9, 2024, the plaintiff BALFOURD AYALA , was assaulted and battered by said police officer, detectives and/or officers while he was present at and/or near 1557 Broadway, County, City and State of New York.
31. That on May 9, 2024, and continuing for an egregiously long period of time, the plaintiff BALFOURD AYALA, was wantonly, intentionally, maliciously, illegally, repeatedly and brutally assaulted, attacked, beaten and battered by said police officers, detectives and/or officers while he was present at and/or near 1557 Broadway, in the County, City and State of New York, and/or such police precincts, holding cells, central booking, hospital facilities and/or premises to which he was taken by the defendants.
32. That by reason of the foregoing, the plaintiff BALFOURD AYALA , was injured.
33. That the foregoing occurrence and the resulting injuries to the plaintiff were caused solely by reason of the carelessness, negligence, intentional infliction of emotional distress, abuse of process, excessive use of force, and assault and battery on the part of the defendants, their servants, agents, police officers and/or employees, who conspired to and did fail to prevent the violation of the plaintiff's Civil and Constitutional rights, and without any cause, provocation or negligence on the part of the plaintiff contributing thereto.
34. That this action arises under the United States Constitution, particularly under provisions of the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. Section 1981, 1983, 1985, 1986 and 1988), the Civil Rights Act, and arising under the law and statutes of the State of New York.

35. That the foregoing occurrences and the resulting injuries to the plaintiff were caused solely by reason of the carelessness, negligence, intentional infliction of emotional distress, abuse of process, excessive use of force, and assault and battery on the part of the defendants, its servants, agents, police officers, and/or employees, in violation of the plaintiff's Civil and Constitutional rights, and without any cause, provocation or negligence on the part of the plaintiff contributing thereto.
36. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence, all to his great damage.
37. That heretofore and within 90 days after the claim served upon arose, the plaintiff caused a Notice of Claim, in writing, sworn to by the plaintiff, containing the name and post office address of the plaintiff, and plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendants by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.
38. That more than thirty (30) days have elapsed since the aforesaid Notice of Claim was served on the said defendants.
39. That plaintiff appeared for his General Municipal Law Section 50(h) hearing on August 10, 2023 in advance of commencing this lawsuit.

40. That the defendants were negligent and have refused and neglected to adjust, settle and pay the same.
41. That this claim has been commenced and this action has been started within one year after the happening of the event upon which the claim is based.
42. That all conditions and requirements precedent to the commencement of this action have been complied with.
43. That oral examination of the plaintiff in compliance with Section 50-H of the General Municipal Law has been waived.
44. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.
45. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.
46. Pursuant to CPLR Section 1602(2)(iv), the defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that said defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.
47. Pursuant to CPLR Section 1602(5), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants' wrongful conduct was intentional.
48. Pursuant to CPLR Section 1602(11), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss,

irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants acted knowingly or intentionally, and in concert, to cause the acts or failures which are a proximate cause of plaintiff's injuries.

49. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A SECOND CAUSE OF ACTION:

50. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First Cause of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

51. That on May 9, 2024, and continuing thereafter, the plaintiff BALFOURD AYALA was intentionally, illegally, falsely and wrongfully arrested by said police officers, without probable or just cause or provocation, who falsely accused the plaintiff of crimes of which he was wholly innocent, and detained the plaintiff for an unreasonable period of time thereafter until he was released.

52. That on May 9, 2024, and continuing thereafter, and while laying seriously injured and defenseless, the plaintiff BALFOURD AYALA was intentionally, illegally, falsely and wrongfully arrested, forcefully handcuffed excessively tightly, moved, pushed, shoved, searched, seized, frisked and manipulated by said police officers, without probable or just cause or provocation, who falsely accused the plaintiff of crimes of which he was wholly innocent, and detained the plaintiff for an unreasonable period of time thereafter until he was released.

53. That the said police officers were employees of the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT and were acting within the scope of their employment for the said defendants.

54. That on May 9, 2024, and continuing thereafter, the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, by its said police officers, servants, agents and/or employees and personnel, including the defendants named herein, acting within the scope of their employment by the said defendants did falsely arrest the plaintiff and detain him without just cause or provocation.

55. That the plaintiff BALFOURD AYALA was fully conscious of the false arrest, detention and confinement, did not consent to same, and such confinement was not otherwise privileged.

56. That by reason of the foregoing, the plaintiff was caused to suffer severe and serious injuries and damages both physically and mentally, suffered grievous harm, embarrassment, defamation of character, damage to his good name, credit, character and reputation, and plaintiff was subjected to extreme public humiliation, scorn, contempt, derision and ridicule.

57. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A THIRD CAUSE OF ACTION:

58. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First and Second Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

59. That on May 9, 2024, and continuing for an egregiously long period of time thereafter, the plaintiff was caused to be intentionally, maliciously, illegally, falsely and wrongfully arrested, detained, imprisoned, incarcerated, fingerprinted, photographed, transported and processed as a common criminal, taken to and detained at the police precinct, Central Booking, holding cells and such other locations to which he was taken

by the defendants, slandered, defamed, incarcerated and deprived of his rights and liberty for an egregiously long period of time until he was discharged, in violation of plaintiff's civil rights under 42 U.S.C. Section 1983. hospitalized as a prisoner and criminal and deprived of his civil and constitutional rights, freedom, urgently required medical treatment and liberty for an unreasonable period of time by the defendants herein until he was discharged.

60. That on May 9, 2024, and continuing thereafter, the defendants did falsely, illegally, wrongfully, intentionally and maliciously arrest, detain, imprison and incarcerate the plaintiff, depriving him of his rights, liberty, freedom, right to be arraigned within 24 hours of his arrest, deprived of urgently required medical treatment and freedom for an unreasonable period of time, all without any just cause or provocation.
61. That the plaintiff BALFOURD AYALA was fully conscious of the wrongful, intentional and illegal imprisonment, detention, incarceration and confinement, did not consent to same, and such confinement was not otherwise privileged.
62. That by reason of the foregoing, the plaintiff was caused to sustain severe and serious injuries and damages, both mentally and physically, severe nervous shock, emotional distress and illness, was placed in a position of fear for his life and well-being, was subjected to extreme embarrassment, humiliation, scorn and ridicule, defamation of character, and was severely and further injured and damaged.
63. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A FOURTH CAUSE OF ACTION:

64. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, and Third Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.
65. That at all times herein mentioned, the defendants intentionally, maliciously, relentlessly and egregiously failed refused to provide for the safety, security and protection of the plaintiff.
66. That at all times herein mentioned, the said defendants negligently failed to sufficiently hire, train and retain employees within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure and provide for the safety, security and protection of the plaintiff.
67. That at all times herein mentioned, the said defendants negligently failed to prevent the within incidents of extraordinary violence and intentional infliction of physical and emotional distress by police officers and/or personnel who were acting within the course and scope of their employment for the said defendants herein.
68. That by reason of the foregoing, the plaintiff was injured.
69. That the foregoing occurrences and the resulting injuries to the plaintiff were caused solely by reason of the carelessness, negligence, negligent hiring, retention, training and supervision on the part of the defendants inducing and permitting a failure to provide for the safety, security and protection, lack of supervision and wanton and willful disregard on the part of the defendants, and without any negligence on the part of the plaintiff contributing thereto.
70. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would

otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A FIFTH CAUSE OF ACTION:

71. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, and Fourth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.
72. That the charges brought against the plaintiff by the defendants were solely for the purpose of covering up and/or purportedly justifying the unconscionable beating, dragging and abuse perpetrated upon the plaintiff by the defendants herein.
73. That the defendants herein intentionally, wantonly, maliciously and improperly conspired and acted in collusion in bringing said charges against the plaintiff solely for the purpose of covering up and/or purportedly justifying the unconscionable beating, dragging and abuse perpetrated upon the plaintiff by the defendants.
74. That the defendants herein intentionally, maliciously, wantonly and improperly refused, neglected, conspired and acted in collusion in failing, neglecting and/or refusing to arrest, apprehend and/or discipline the defendants police officers herein regarding their unconscionable beating, assault, intentional infliction of physical and emotional harm and abuse of the plaintiff.
75. That by reason of the foregoing, the plaintiff was caused to sustain severe and serious injuries and damages, both mentally and physically, severe nervous shock, emotional distress and illness, was placed in a position of fear for his life and well-being, was subjected to extreme embarrassment, humiliation, scorn and ridicule, defamation of character, and was severely injured and damaged.
76. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would

otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A SIXTH CAUSE OF ACTION:

77. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, and Fifth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.
78. That at all times herein mentioned, the defendants, their servants, agents, employees, police officers and/or representatives intentionally, wantonly, maliciously and falsely prosecuted the plaintiff for the criminal charges of which they accused him.
79. That at all times herein mentioned, the defendants, their servants, agents, employees, police officers and/or representatives intentionally, wantonly and maliciously prosecuted the plaintiff, as a common criminal, causing and/or compelling him to appear in public and in Court and falsely prosecuted the plaintiff.
80. That the said criminal charges against the plaintiff were dismissed.
81. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR AN SEVENTH CAUSE OF ACTION:

82. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, and Sixth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.
83. That the defendants herein carelessly, negligently, wrongfully, wantonly, intentionally and maliciously targeted the plaintiff in an act of racial profiling, in connection with

accusations, charges, slander, arrest, detention, imprisonment and assault, due to his race.

84. That the said discriminatory actions and racial profiling on the part of the defendants herein, their agents, servants, police officers, employees and/or representatives, unfairly discriminated against individuals of color and/or ethnicity in violation of Federal Civil Rights Laws, the Constitutions of the United States and of New York State.

85. That by reason of the foregoing, the plaintiff has suffered severe damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION:

86. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, and Seventh Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

87. That this is an action to redress the deprivation under color of State Law and/or in compliance with Statute, ordinance, regulation, custom or usage of a right, privilege and immunity secured to the plaintiff by the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. Section 1981, 1983, 1985, 1986 and 1988), the Civil Rights Act, and arising under the law and statutes of the State of New York.

88. Each and all of the acts of the defendants herein were done by the defendants, their servants, agents and/or employees, and each of them, but under the color of State Law and/or in compliance with the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

89. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A NINTH CAUSE OF ACTION:

90. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, and Eighth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

91. That at all times herein mentioned, it was the duty of the defendants to select and screen for hiring for retention or discharge as employees those who are not fit, suitable, properly trained and instructed, constituting a potential menace, hazard or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological, racist, biased and/or physiological traits or characteristics or unsuitable or unstable or contraindicated for such employment.

92. That at all times herein mentioned, it was the duty of the said defendants to sufficiently hire, train and retain personnel within the Police Academy and at the Command, Precinct and Patrol levels so as sufficiently discipline, supervise, promulgate and put into effect appropriate rules applicable to the duties, activities and behaviors of their servants, agents, police officers, employees and/or personnel.

93. That by reason of the negligence of the said defendants in their hiring, monitoring, supervision and retention of said defendants police officers, with knowledge of the unsuitable, unstable and unfitness to act and serve and unfitness to continue to act and serve as employees by reason of the defendants' breach of said duties, the plaintiff was caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing him extreme physical,

mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

94. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR AN TENTH CAUSE OF ACTION:

95. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, and Ninth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

96. That at all times herein mentioned, the defendants had an affirmative duty to intercede when a person's, including the plaintiff's, constitutional rights were being violated in defendants' witnessed presence by use of excessive force.

97. That at all times herein mentioned, the defendants had an affirmative duty to intercede and prevent the further, continuing and unremitting violation of a person's, including the plaintiff's, constitutional rights resulting in further serious injuries caused as a result of said failure.

98. That at all times herein mentioned, the defendants had an affirmative duty to intercede when a person's, including the plaintiff's, constitutional rights were being violated in defendants' witnessed presence by falsifying evidence of probable cause to arrest the plaintiff.

99. That at all times herein mentioned, the defendants intentionally, illegally, maliciously and egregiously breached and violated its affirmative duty to intercede when the plaintiff's civil and constitutional rights were being violated in defendants' witnessed presence by use of excessive force.

100. That at all times herein mentioned, the defendants intentionally, illegally, maliciously and egregiously breached and violated its affirmative duty to intercede and prevent the further, continuing and unremitting violation of the plaintiff's civil and constitutional rights resulting in further serious injuries caused as a result of said failure.

101. That at all times herein mentioned, the defendants intentionally, illegally, maliciously and egregiously breached and violated its affirmative duty to intercede when the plaintiff's civil and constitutional rights were being violated in defendants' witnessed presence by falsifying evidence of probable cause to arrest the plaintiff.

102. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION:

103. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth, and Tenth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

104. That the defendants herein failed, neglected, omitted and refused to report and correct, rectify and/or discontinue the misconduct, improprieties, violations and malfeasance of the defendants police officers herein.

105. That the defendants herein intentionally, wantonly, negligently and maliciously conspired and acted in collusion in failing, neglecting, omitting and refusing to report, rectify and/or discontinue the misconduct, improprieties, violations and malfeasance of the defendants police officers herein.

106. That the defendants herein intentionally, wantonly, negligently and maliciously constructed and maintained a Blue Wall of Silence in failing, neglecting, omitting and refusing to report, rectify and/or discontinue the misconduct, improprieties, violations and malfeasance of the defendants police officers herein, in violation of 42 U.S.C. 1985.

107. That by reason of the foregoing, the plaintiff was caused to sustain severe and serious injuries in amounts which exceed the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION:

108. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth, Tenth, and Eleventh Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

109. That this is an action to redress the deprivation under color of statute, ordinance, regulation, custom or usage of a right, privilege and immunity secured to the plaintiff by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. Section 1983, 1985, 1986 and 1988) and arising under the law and statutes of the State of New York.

110. That the defendants have a custom or policy of using excessive force on minorities.

111. That the said defendants custom or policy of using excessive force on minorities can be inferred from the facts and circumstances surrounding cases like *Cardoza v. City of New York*, Supreme Court, Kings County, Index No. 09401 307977-2008, *Ferguson v. City of New York*, Supreme Court, Kings County, Index No. 09401 18951-2001, *Juanita Young v. City of New York*, Supreme Court, Kings County, Index No. 09401

301162-2007, Martire v. City of New York, Supreme Court, New York County, Index No. 09401 106827-2008 and other similar excessive force, civil rights actions that have been brought against defendants.

112. That the deprivation of plaintiff's constitutional rights was the result of defendants' custom or policy of using excessive force on minorities.

113. That the defendants have a custom or policy of falsely arresting innocent persons in order to meet productivity goals and quotas.

114. That the defendants' custom or policy of falsely arresting innocent persons in order to meet productivity goals and quotas can be inferred from the facts and circumstances surrounding cases like Schoolcraft v. City of New York, United States District Court, Southern District of New York, Index No. 09401 10 CV 06005, and other similar false arrest, unconstitutional quota civil rights actions that have been brought against defendants.

115. That the defendants' custom or policy of improper stops, searches, strip-searches and seizures can be inferred from the facts and circumstances surrounding cases like Preston v. City of New York, Supreme Court, Bronx County, 493-2008, People v. William Eiseman, and other similar illegal search and seizure civil rights actions that have been brought against defendants and from defendants' UF-250 and CCRB data.

116. That at all times herein mentioned, the defendants carelessly, negligently, intentionally, wantonly, deliberately, unscrupulously, immorally and unequivocally protected, disconnected, shielded and isolated police officers, administrators and precincts, including the defendants herein, from liability, culpability and accountability for their ongoing, intentional, malicious, deplorable, evolving and expanding custom, protocol and regimen of notorious, disgraceful and appalling violations of constitutional and civil rights, liberty and freedom by virtue of creating and maintaining a blue wall and code of silence among police officers, administrators and precincts, at the policy making level, even in their intentional, wanton and dissolute failure, neglect and refusal

to properly and adequately investigate, discipline, suspend, terminate, expel, demote, dismiss and/or reassign such police officers, including the defendants herein, in response to the increasingly large numbers of civil rights claims, lawsuits, dismissals, declined prosecutions, City Council hearings, newspaper and tv reports and complaints against THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT for said continually expanding custom and regimen of unreasonable and unconscionable use of excessive, unnecessary, unwarranted and egregious force, false arrest, imprisonment, malicious prosecution, violence, and savage brutality by said police officers, thereby creating, condoning, sanctioning, sustaining, promoting, encouraging and fostering such climate, custom, practice, policy and regimen of increasingly outrageous misconduct, lies, falsification, corruption and abuse, all with deliberate indifference, without fear of reprisal, for the public safety, protection and well-being.

17. That the deprivation of plaintiff's constitutional rights was the result of defendants' custom or policy of performing improper stops, searches, strip-searches and seizures.

18. That by reason of all of the foregoing, the plaintiff suffered serious injury due to the deprivation of plaintiff's rights under the Constitution, created by a deliberate indifference to the plaintiff's rights, by policy-level decision on the part of the defendants to act, or fail to act.

19. That the defendants engaged in a policy, regimen, routine or custom of deliberate indifference so widespread and ingrained as to "have the force of law."

20. That by reason of all of the foregoing, the plaintiff suffered serious injury due to the deprivation of rights under the Constitution, created by such regimen, routine and custom of deliberate indifference to the plaintiff's rights, by policy-level decision on the part of said defendants to act, or fail to act.

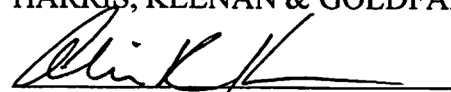
121. That by reason of all of the foregoing, the plaintiff brings a Monell Claim for serious injury and damages he suffered as a result of the deliberate indifference and heightened level of culpability on the part of the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

WHEREFORE, plaintiff demands judgment against the defendants, the amount sought on each Cause of Action exceeding the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction, in amounts to be determined upon the trial of this action, together with the costs and disbursements of this action, and with interest from the date of this occurrence.

Dated: New York, New York
April 29, 2024

Yours, etc.,
HARRIS, KEENAN & GOLDFARB PLLC

By:



Alison R. Keenan
Attorneys for Plaintiff
233 Broadway, Suite 900
New York, New York 10279
(212) 393-1000
File No: 208931

ATTORNEY VERIFICATION

Alison R. Keenan, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

I am the attorney for the plaintiff in the within action and have read the foregoing **COMPLAINT** the contents thereof; the same is true upon information and belief.

This verification is made by this affiant and not by said plaintiff because said plaintiff reside(s) in a County other than the County wherein your affiant maintains her office.

The grounds of affiant's knowledge and belief are as follows: Conference with clients and notes and records contained in the file maintained in the regular course of business.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
April 29, 2024


Alison R. Keenan

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

BALFOURD AYALA,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT,
P.O. PHILIP SIU and POLICE OFFICERS
"JOHN DOES and JANE DOES 1-10", said
names being fictitious and unknown,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

HARRIS, KEENAN & GOLDFARB PLLC

Attorneys for Plaintiff(s)

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(212) 393-1000